

Umang Tewari vs Pooja Tewari & Anr on 5 November, 2020

Author: Hima Kohli

Bench: Hima Kohli, Subramonium Prasad

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IN THE HIGH COURT OF DELHI AT NEW DELHI

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MAT.APP.(F.C.) 135/2020

UMANG TEWARI

Through

..... Appellant

Ms. Bobby Anand, Advocate

versus

POOJA TEWARI & ANR.

..... Respondents

Through None

CORAM:

HON'BLE MS. JUSTICE HIMA KOHLI

HON'BLE MR. JUSTICE SUBRAMONIUM PRASAD

ORDER

% 05.11.2020 HEARD THROUGH VIDEO CONFERENCING CM.APPL 28003/2020(exemption)
Allowed, subject to all just exceptions.

MAT.APP.(F.C.) 135/2020 & CMs.APPL 28001/2020(delay) & 28002/2020(stay)

1. The appellant/husband is aggrieved by an interim order dated 06.03.2020, passed by the learned Family Court dismissing an application moved by him in a divorce petition filed by him under Section 13(1) and (13(1)(ia), of the Hindu Marriage Act, praying inter alia for amendment of the divorce petition and for adding the grounds for annulment therein as provided under Section 12 of the Act.

2. As per the record, the marriage of the parties was solemnized on 13.12.2006. There are two children born from the wedlock, one on 19.08.2008 and the other on 24.02.2010. The parties had resided together till December 2016. Thereafter, the respondent is residing at her parental home along with the two children. The divorce petition came to be filed by the appellant/husband in the year 2017, whereas the amendment application was moved on 11.09.2018.

3. Though Ms.Anand, learned counsel for the appellant/husband states that an advance intimation of filing of the appeal was conveyed to the respondent No.1, none is present on her behalf. Learned counsel for the appellant is directed to give a written intimation through whatsapp/email of the next date of hearing to the respondents No.1 and 2 as also the counsel who are appearing for them before the learned Family Court. The respondent No.1 shall be informed that she should remain virtually present on the next date. So shall the appellant.

4. List for admission on 18.01.2021. Parties shall remain virtually present on the next date of hearing.

HIMA KOHLI, J SUBRAMONIUM PRASAD, J NOVEMBER 05, 2020 pst/rkb